

Court No. - 29

Case :- WRIT - C No. - 11087 of 2019

Petitioner :- Mahesh Verma Agro Food Corporation Pvt Ltd

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Rahul Kumar Sharma,Vikas Srivastava

Counsel for Respondent :- C.S.C.,Ashish Agrawal,Baleshwar Chaturvedi

Hon'ble Pankaj Mithal,J.

Hon'ble Prakash Padia,J.

Heard Sri Rahul Kumar Sharma, learned counsel for the petitioner, learned Standing Counsel for respondent no. 1, Smt. Usha Kiran, learned counsel for respondents no 2 and 3 and Sri Ashish Agrawal, learned counsel for respondent no. 4.

The petitioner by means of this writ petition wants that an electricity connection be sanctioned to him to be installed at the premises- Sasni Agro Cold Pvt. Ltd. Nagla Vijahari Plot No. 246, Sasni, District Hathras.

The petitioner alleges that he had purchased the said property in auction and he is now the owner in possession of the same.

The respondents no. 2 and 3 by the impugned dated 28.2.2019 have refused to sanction the electricity connection in absence of No-Dues Certificate in respect to the the electricity dues of the previous owner.

The petitioner relying upon the decision of the Supreme Court in case of Southern Power Distribution Company of Telangana Ltd.Through its CMD and Ors. Vs. Gopal Agarwal and Ors. reported in 2018(12)SCC 644 submits that the electricity dues of the previous owner cannot be realized from the petitioner.

The realization of the electricity dues from the purchaser of the property is altogether a different thing then asking for the No-Dues Certificate for the grant of the electricity connection.

In the present case respondents are not recovering any electricity dues of the previous owner from the petitioner. They are simply ensuring if the previous dues have been deposited and are asking for a No-Dues Certificate so that the grant of new connection may be considered.

In this regard Clause 4.1 of the U.P. Electricity Supply Code 2005 specifically provides that in case of arrears of electricity dues in respect to any old consumer/premises where the ownership has changed the new connection shall be released to the subsequent owner only after submission of the No-Dues

Certificate. Clause 4.3(f) of the Code further provides that it will be the duty of the seller and of the purchaser to find out the outstanding electricity dues upto the date of sale, and further that both the seller and the purchaser will either/or jointly and severally liable to pay the outstanding electricity dues/ obtain No-Dues Certificate.

In view of the aforesaid provisions of the Code, the petitioner has to produce No-Dues Certificate or to get the dues of the previous owner cleared for the purpose of obtaining a fresh electricity connection in the said premises.

In view of the above, we find no error or illegality in the order impugned.

The writ petition, as such, has no merits and is dismissed.

Order Date :- 8.4.2019

M.A.Ansari